



DECISION

Complaint No. : POS/4231/2025/H

Name and address of the complainant : Mr. Abdul Hameed Phulpoto, Assistant, R/o. Flat No.C/42, GOR-II, Sindhi Muslim Coop. Housing Society, Karachi.

Name of the Agency Complained against : Works & Services Department, Government of Sindh.

Name & Designation of Investigating Officer : Rehana Ghulam Ali Memon, Advisor (H)

Vetted by :

Subject :

DELAY IN REPAIR / MAINTENANCE OF OFFICIAL RESIDENCE OF THE COMPLAINANT DESPITE HIS PERSUASION, ETC.

COMPLAINT

Mr. Abdul Hameed Phulpoto, Assistant, allottee of Government Flat No.C-42, GOR-II, Sindhi Muslim Coop. Housing Society (SMCHS), Karachi filed a complaint on 10.07.2025 alleging that he has been approaching the Provincial Buildings Division, Works & Service Department, Sindh, Karachi for repair / maintenance of his flat but failed to receive any positive response. In this regard, he also approached the Enquiries & Anti-Corruption Establishment (E&ACE), Sindh, who forwarded his complaint to Works & Services Department, where he was called and his statement was taken but no fruitful result achieved. He, therefore, solicited Ombudsman Sindh's intervention in the matter.

PROCEEDINGS

2. The complaint was admitted on 11.02.2025 under Section 10 of the Establishment of Office of the Ombudsman Sindh for the Province of Sindh Act, 1991 (amended up to date), by condoning delay, subject to submission of copy of CNIC and Affidavit on Form 'A'. The complainant submitted the required documents.
3. The complaint was forwarded to the Superintending Engineer, Provincial Buildings Circle, Karachi and the Executive Engineer, Provincial Buildings Division-III, Karachi vide letter dated 15.07.2025 for report and a hearing was fixed on 05.08.2025, which was attended by the Assistant Engineer, Provincial Building Sub Division, Karachi and the complainant. The Assistant Engineer submitted a report dated 04.08.2025 stating therein that M&R work has been carried out in the complainant's flat C-42 from time to time. An amount of Rs.700,000/- was released in the year 2020-21 in respect of his flat and the amount was utilized by the complainant himself. One water tank was installed alongwith sanitary fittings in 2023-24, again two water tanks installed with complete fitting in 2024-25. Besides, in order to carryout the M&R works in the said flat, the applicant was approached but he did not allow on the pretext of certain conditions against the policy / rules i.e. demands of cash payments and luxury items.
4. He also informed that funds received are distributed to all government residences and are not confined to internal works but also utilized for external works such as sanitary and drainage pipes lines, replacement of manholes and daily janitorial services, etc. He also stated that full amount of allocated funds are not released every year.
5. He reported that in the Financial Year 2025-26, the budget book volume-III reflects no allocation under Works & Services Department as the GA Wing of SGA&CD being the custodian of the flat has transferred the funds from Works & Service Department to its own administrative domain for which a policy is underway.

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6. On directives of the Investigating Officer for visiting the complainant's flat and check requirements of the work and submit report, the Executive Engineer concerned submitted a report dated 29.08.2025 mentioning the necessary works required in the complainant's flat i.e. replacement of kitchen cabinets, replacement of kitchen tiles, subject to permission, since they are faded but not damaged, repair of aluminum windows, door repair / Replacement, Providing & fixing expanded metal Jalli in gallery, colouring / painting works, dismantling of floor in one bath room due to blockage of W.C pipe beneath the floor, which is causing accumulation and overflow of water, and repair of almirahs.

7. The Executive Engineer, Provincial Buildings Division-III, Karachi appeared in the hearing held on 10.10.2025 to discuss the works to be done as in para-6 and stated that the policy has been decided by the Secretary (GA), SGA&CD in a meeting held on 16.09.2025 and will be notified, according to which work will be carried out by the W&S Department but will be monitored by SGA&CD, (GA Wing). He further informed that funds of Rs.53.910 million have been earmarked for 02 quarters of financial year for GOR-II and they have prepared the details and forwarded to Finance Department and one million will be allotted for carrying out the O&M work on the complainant's flat and only repair will be done and no new work will be taken from this amount.

8. The complainant also showed satisfaction with the policy and work proposal but said that no electric work has been added as it needs to be done to avoid fire accident. The Executive Engineer agreed to do the same from one million. On pointation by the complainant regarding the hiring of pump operator, it was informed that pump operator will be hired from contingency funds.

FINDINGS

9. I have examined the case and found that:

- i. The Agency has agreed to start work of the complainant's flat C-42, GOR-II, SMCHS as per work proposals agreed by the complainant in light of agreed policy of GA Wing of SGA&CD.
- ii. It was observed that complainant had carried out O&M work in his flat almost every year. Due to limited funds G.A Wing of SGA&CD should decide a policy regarding release of O&M Funds after at least 02 years to an individual to give chance to all residents.

DECISION

10. In view of the above and in exercise of powers vested in me under Section-11 of Establishment of Office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), I hereby dispose of the complaint as redressed. The Executive Engineer, Provincial Buildings Division-III, Karachi, is directed to complete the repair work of the complainant's flat as per work proposal submitted by him and report compliance to me inside 30 days.

11. The Secretary (GA), SGA&CD, Government of Sindh, should also decide the policy regarding O&M Funds so that they can be equitably and transparently utilized.

Given under my hand and seal of office.



Sd/-
Muhammad Sohail Rajput
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 30th October, 2025